

25VECV05069 25VECV05069

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-07-20

Motion: DEFENDANTS' MOTIONS TO COMPEL INITIAL DISCOVERY FROM PLAINTIFFS IRIS ESTRADA AND MICHAEL HERNANDEZ

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Case Number: 25VECV05069 Hearing Date: July 20, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MICHAEL

HERNANDEZ; IRIS ANAI ESTRADA,

Plaintiffs,

vs.

ALEX MICHAEL FIGUEROA; MARALE

KURKEYERIAN; AND DOES 1 TO 100, INCLUSIVE, AND EACH OF THEM,

Defendants.

CASE NO: 25vecv05069

[TENTATIVE]

ORDER RE:

DEFENDANTS'

MOTIONS TO COMPEL INITIAL DISCOVERY FROM PLAINTIFFS IRIS ESTRADA AND MICHAEL HERNANDEZ

Dept. W

8:30 a.m.

July 20, 2026

[TENTATIVE] ORDER: The Court DENIES

Defendants' Motions to Compel Initial Discovery as MOOT. However, the Court GRANTS Defendants' request for discovery sanctions against Plaintiff Michael Hernandez and his attorney of record in the modified amount of \$1,080.00. The Court also GRANTS Defendants' request for discovery sanctions against Plaintiff Iris Estrada and her attorney of record in the modified amount of \$855.00.

Background

This

is a motor vehicle negligence case. Plaintiffs Michael Hernandez and Iris Estrada allege that, on October 25, 2024, they were driving northbound along Owensmouth Avenue. Plaintiffs allege that Defendants Alex Figueroa and Marale Kurkeyerian were driving directly behind Plaintiffs, at an unsafe distance and speed. Plaintiffs allege that Defendants negligently collided with Plaintiffs' vehicle, causing Plaintiffs serious injuries.

On September 8, 2025, Plaintiffs brought suit against Defendants, alleging both motor vehicle and general negligence.

Now, Defendants move to compel initial discovery from Plaintiffs Michael Hernandez and Iris Estrada.

Discussion

i)

Discovery Analysis

Defendants bring six separate motions to compel initial discovery.

These six motions request initial Form Interrogatories, Special Interrogatories, and Requests for Production from Plaintiffs Michael Hernandez and Iris Estrada. (See, e.g. Mot. to Compel Initial Re: Figueroa FROGs, pp. 1:27-2:3.)

Under CCP § 2030.290, if a party does not respond to a request for interrogatories in a timely fashion, the requesting party can move to compel responses (CCP § 2030.290 (b).) Similarly, under CCP § 2031.300, if a party does not respond to a request for production in a timely fashion, the requesting party can move to compel production. (CCP § 2031.300 (b).)

Here, Defendants

propounded all six of these discovery requests on February 5, 2026. (Martinez Decl. ¶ 2.) Following a series of extensions, Plaintiffs were given until April 6, 2026, to provide responses. (Id. ¶ 4.) As of April 15, 2026, the filing date of this motion, Plaintiffs have yet to respond to any of these requests. (Id. ¶ 5.) Thus, Plaintiffs' responses are untimely.

However, on July 7, 2026, Plaintiffs filed six identical Oppositions to these motions. There, Plaintiffs state that, on May 15, 2026, they served verified, objection free responses to all six of these requests. (Opp. Re: Iris SROGs, Allred Decl. ¶ 9.) Notably, Defendants have submitted no Reply contesting Plaintiffs' assertion that they are now in compliance. Thus, the Court concludes that Plaintiffs have produced the requested discovery, making these motions MOOT.

For these reasons, the Court DENIES all six of Defendants' Motions to Compel FROGs, SROGs, and RFPs from Plaintiffs as MOOT.

ii)

Sanctions

Defendants also make six separate requests for \$1,125.00 in discovery sanctions in conjunction with all six of these motions. (Martinez Decl. ¶ 6.) These requests are brought against Plaintiffs and their counsel of record. (See e.g., Mot. to Compel Re: Hernandez FROGs, p. 5:6-7.)

Sanctions are mandatory in connection with motions to compel Interrogatories or Requests for Production, unless the non-complying party acted with substantial justification or other circumstances make the imposition of the sanction unjust. (CCP §§ 2031.300 (c), 2030.290(c).)

Here, the Court does not find that Plaintiffs acted with substantial justification in submitting these delayed responses. Plaintiffs were given

numerous extensions to provide their initial discovery responses, which were due by April 5, 2026. (Martinez Decl. ¶¶ 2-4.) Plaintiffs did not provide responses until after these motions were filed. (Allred Decl. ¶ 9.) In their Opposition, Plaintiffs characterize this failure to respond as a calendaring error. (Opp. p. 5:6-8.) Plaintiffs then assert that sanctions are inappropriate here, because Defendants did not preemptively reach out to Plaintiffs one more time before filing these motions. (Id. p. 5:9-10.) But Defendants' failure to reach out does not create a substantial justification for the non-imposition of sanctions against Plaintiffs. Plaintiffs had been given multiple extensions to provide discovery responses. (Martinez Decl. ¶¶ 2-4.) It was therefore Plaintiffs' obligation to meet these new, extended deadlines, rather than Defendants' job to monitor Plaintiffs' compliance. For these reasons, the Court finds that sanctions are appropriate.

However, the Court finds the amounts requested by Defendants to be unreasonable. In support of these requests, Defendants provide the declaration of their counsel, Bryan Martinez, who states that, for each separate motion, he spent 2 hours drafting the motion, anticipates spending 1 hour analyzing the Opposition and preparing a Reply, and anticipates spending 1 hour at the hearing on this motion. (Martinez Decl. ¶ 6.) Mr. Martinez also states that he bills at \$225 an hour. (Ibid.) In summary, Defendants bill for 4 hours of work, at \$225 an hour, for each separate motion. Including the \$60 filing fee, this puts Defendants' estimated costs at \$960 per motion.

The Court takes multiple issues with this request. First, Defendants miscalculate their own fee requests at \$1,125, when they should be \$960. (See, Mot. to Compel Initial Re: Hernandez SROGs, p. 5:6-7.) Second, Defendants have not submitted any Replies, thus, the anticipated hours Defendants requested for work on the Replies is improper. Additionally, all six of Plaintiffs' Oppositions are identical, so it would be duplicative to allow Defendants to recover for six separate instances of reviewing the Opposition. Thus, the Court reduces these 1-hour requests to 0, for all six motions, except for the Motion to Compel FROGs from Mr. Hernandez, which will be reduced to 0.5 hours.

Next, all six of these motions are being heard simultaneously. Thus, it would be duplicative to allow Plaintiffs to bill for attending the hearings on each separate motion. For this reason, the Court reduces each 1-hour request for attending the hearing to 0 for all six motions, except for the Motion to Compel FROGs from Mr. Hernandez, which will be reduced to 0.5 hours.

Finally, the Court finds that 2 hours of billing for each of these motions is excessive. These are all simple motions to compel initial discovery, and they all rely on the exact same set of facts. (See generally, Bryan Martinez Decl.) Thus, the Court will reduce the 2 hours requested for each motion to 1.

In summary, the Court has reduced Defendants' requested hours in the Motion to Compel FROGs from Mr. Hernandez to 2. This brings Defendants' reasonable attorney fees for this motion to \$510. Additionally, the Court reduces the hours requested in the other five motions to 1. This brings Defendants' reasonable attorney fees for the other five motions to \$285.

For these reasons, the Court GRANTS Defendants' request for discovery sanctions against Plaintiff Michael Hernandez and his attorney of record in the modified amount of \$1,080.00.

The Court also GRANTS Defendants' request for discovery sanctions against Plaintiff Iris Estrada and her attorney of record in the modified amount of \$855.00.

Conclusion

The Court DENIES Defendants' Motions to Compel Initial Discovery as MOOT. However, the Court GRANTS Defendants' request for discovery sanctions against Plaintiff Michael Hernandez and his attorney of record in the modified amount of \$1,080.00. The Court also GRANTS Defendants' request for discovery sanctions against Plaintiff Iris Estrada and her attorney of record in the modified amount of \$855.00.

IT
IS SO ORDERED, DEFENDANTS TO GIVE NOTICE.

July 20, 2026

Judge of the Superior Court